

25STCV27061 25STCV27061

County: los-angeles

Division: Civil Law and Motion

Department: 730

Hearing date: 2026-07-17

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C730%2C07%2F17%2F2026

Source SHA-256: 954b49a5148503327c9e56ed60f7e03adbbe515560853f2733569e5b4eaf8ba1

Case Number: 25STCV27061 Hearing Date: July 17, 2026 Dept: 730

TENTATIVE

The request for default judgment submitted on June 4, 2026, is DENIED for the following reasons:

In Section 8 of the CIV-100 form, Plaintiff Nonie Barclay ("Barclay") asserts Defendant Alla Volk ("Volk") was not in the military because "Plaintiff knows Defendant personally and knows she was not in the military," and Volk's "pre-lit counsel" "never mentioned any issues with the military." This is not an appropriate basis for the court to determine Volk is not in the military at this time. Barclay has failed to satisfy this requirement.

Barclay did not submit a declaration from a percipient witness or other evidence in support of the \$500,000.00 in damages sought. Barclay's declaration attests Barclay's paychecks bounced and that Barclay was subjected to numerous wage/hour violations. Beyond an assertion that Barclay was given a \$950.00 paycheck and asked not to check it, there are no numbers or figures to support any particular amount in damages. (Barclay Decl. ¶ 2.) The "supplemental application for default judgment by the court," which is not a declaration submitted under penalty of perjury, asserts Barclay suffered \$44,793 in wage/hour damages and \$420,000 in termination related damages without any evidence to supplement these figures. Barclay does not provide proof of previous salary or any admissible evidence in support of the alleged emotional damages allegedly totaling \$350,000.00. Barclay has failed to provide any admissible evidence in support of the requested primary damages.

Although Barclay later served a statement of damages requesting \$2,000,000.00 in punitive damages, Barclay's underlying complaint does not make a request for punitive damages in the prayer for relief. In order to obtain punitive damages, Barclay must put Volk on notice as to the request for punitive damages via request in a complaint's prayer for relief. This cannot be later supplemented with a statement of damages; it must be properly pled. Barclay should either amend the underlying complaint to add in a request for punitive damages in the prayer for relief, vacating default, or remove the request for punitive damages.

The OSC re entry of default judgment is continued to the court's next available date in approximately 60 days. No later than 15 days before the new hearing date, Plaintiff is to submit a new default judgment package correcting these defects. Failure to do so may result in the imposition of sanctions, including monetary sanctions and/or dismissal.